

SENATE BILL 2178

By Yager

AN ACT to amend Tennessee Code Annotated, Title 39,
Chapter 13, relative to criminal offenses.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 39-13-514, is amended by deleting subdivision (a)(2) and substituting:

(2) When a person patronizes prostitution where the subject of the offense is:

(A) A law enforcement officer;

(B) A law enforcement officer eighteen (18) years of age or older posing as a minor;

(C) A person who has an intellectual disability; or

(D) A person who is less than eighteen (18) years of age.

SECTION 2. Tennessee Code Annotated, Section 39-13-514, is amended by deleting subsection (b) and substituting:

(b)

(1) Patronizing prostitution under subsection (a)(1) or subdivision

(a)(2)(A) is a Class A misdemeanor.

(2) Patronizing prostitution under subdivision (a)(2)(B) or (a)(2)(C) is a Class B felony.

(3) Patronizing prostitution under subdivision (a)(2)(D) is a Class A felony.

(4) Patronizing prostitution within one and one-half (1.5) miles of a school shall, in addition to any other authorized punishment, be punished by no less

than seven (7) days of incarceration and by a fine of not less than one thousand dollars (\$1,000).

(5) This section does not prohibit prosecution under any other applicable law.

SECTION 3. This act takes effect July 1, 2026, the public welfare requiring it.